



CHAPTER clxxiii.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to the Newburgh and North Fife Railway. A.D. 1904.

[15th August 1904.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Newburgh and North Fife Railway (Extension of Time) Order Confirmation Act 1904. Short title.

A.D. 1904.

SCHEDULE.

NEWBURGH AND NORTH FIFE RAILWAY
(EXTENSION OF TIME).

Provisional Order to further extend the time limited by the Newburgh and North Fife Railway Act 1897 and Acts and Order amending the same for the compulsory purchase of Lands and for the construction and completion of the Railways and Works by the first-mentioned Act authorised and for other purposes.

WHEREAS by the Newburgh and North Fife Railway Act 1897 (in this Order called "the Act of 1897") the Newburgh and North Fife Railway Company (in this Order called "the Company") were incorporated and were authorised to make the railways and works in the county of Fife in that Act described :

And whereas the time limited by the Act of 1897 as extended by the North British Railway (General Powers) Act 1900 and further extended by the North British Railway (General Powers) Order 1903 for the compulsory purchase of lands for the purposes of the said railways and works will expire on the sixth day of August one thousand nine hundred and four and the time limited for the completion of such railways and works will expire on the sixth day of August one thousand nine hundred and eight and it is expedient that such periods should respectively be extended as in this Order provided :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

Short title.

1. This Order may be cited as the Newburgh and North Fife Railway (Extension of Time) Order 1904.

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(Extension of Time) Order Confirmation Act, 1904.

2. Part II. (relating to extension of time) of the Railways A.D. 1904.
 Clauses Act 1863 is incorporated with and forms part of this
 Order. Incorporation of part of Act.

3. The powers granted to the Company by the Act of 1897 Extension
 as extended by the North British Railway (General Powers) Act of time for
 1900 and further extended by the North British Railway (General purchase of
 Powers) Order 1903 for the compulsory purchase of lands for the lands.
 purposes of the Act of 1897 are hereby extended and may be
 exercised for a further period of two years from the sixth day of
 August one thousand nine hundred and four and on the expiration
 of that period those powers shall cease.

4. The powers granted to the Company by the Act of 1897 Extension
 and extended as aforesaid for the completion of the railways and of time for
 works authorised by the Act of 1897 shall be and the same are completion
 hereby further extended and may be exercised by the Company for of railways.
 a further period of three years from the sixth day of August one
 thousand nine hundred and eight.

5. The extended period hereby granted for completing the Extended
 railways and works authorised by the Act of 1897 shall for all period for
 purposes referred to in the said Act with reference to the completion completion
 of the same be deemed to be the period limited by the of railways to
 said Act for the completion of the same Provided that if the said be deemed
 railways and works shall not be completed within the extended period limited by
 period limited by this Order then on the expiration of such period Act of 1897.
 the powers granted to the Company for the construction and completion
 thereof shall cease except as to so much thereof as shall
 then be completed.

6. The Company shall not under the powers of this Order Restrictions
 or under the powers of any former Act extended by this Order on displacing
 purchase or acquire in any district within the meaning of the persons of
 Public Health (Scotland) Act 1897 ten or more houses which on labouring
 the fifteenth day of April next before the passing of the Act class.
 confirming this Order or on the fifteenth day of December next
 before the passing of the former Act by which such purchase or
 acquisition was originally authorised (as the case may be) were
 occupied either wholly or partially by persons belonging to the
 labouring class as tenants or lodgers or except with the consent
 of the Secretary for Scotland ten or more houses which were
 not so occupied on the said fifteenth day of April or the said

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(*Extension of Time*) *Order Confirmation Act, 1904.*

A.D. 1904. — fifteenth day of December (as the case may be) but have been or shall be subsequently so occupied unless and until—

(A) They shall have obtained the approval of the Secretary for Scotland to a scheme for providing new dwellings for the persons residing in such houses or for such number or proportion of such persons as the Secretary for Scotland shall after inquiry deem necessary having regard to the number of persons residing in the houses liable to be taken and working within one mile therefrom and to the amount of vacant suitable accommodation in the immediate neighbourhood of the houses liable to be taken or to the place of employment of such persons and all the other circumstances of the case; and

(B) They shall give security to the satisfaction of the Secretary for Scotland for the carrying out of the scheme.

If the Company acquire or appropriate any house or houses for the purposes of this Order in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Secretary for Scotland by action in the Court of Session and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the Court may if it think fit reduce such penalty.

For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

Provision as
to general
Railway
Acts.

7. Nothing in this Order contained shall exempt the Company or the railway from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the passing of the Act confirming this Order or from any future revision or alteration under the authority of Parliament of the maximum rates of fares

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and charges or of the rates for small parcels authorised by the Act A.D. 1904.
of 1897.

8. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Order and the Act confirming the same or otherwise in relation thereto shall be paid by the Company. Costs of
Order.

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